

SAMPLE SOFTWARE SERVICES AGREEMENT

This agreement is entered into as of August 1, 2026 between Sample Customer and Sample Provider.

1. SERVICES. Provider will deliver the software services described in the attached Statement of Work. Customer will provide reasonable access to its systems and data needed for delivery.
2. FEES AND PAYMENT. Customer will pay the fees listed in the Statement of Work within 30 days after invoice. Late payments accrue interest at 1.5 percent per month.
3. TERM AND TERMINATION. The term begins on the effective date and continues for 12 months. Either party may terminate for convenience with 90 days written notice. Provider may terminate immediately if Customer breaches payment obligations.
4. INTELLECTUAL PROPERTY. Provider retains all rights in its software, tools, and preexisting materials. Customer receives a limited license to use the deliverables during the term.

5. CONFIDENTIALITY. Each party will protect the other's confidential information using reasonable care and will not disclose it without prior written consent.

6. WARRANTIES. Provider warrants that the services will be performed in a professional manner. Customer warrants that it has authority to enter this agreement.

7. DISCLAIMER. Except as stated in this agreement, all services and deliverables are provided as is without warranties of any kind.

8. LIMITATION OF LIABILITY. Neither party will be liable for indirect, incidental, special, or consequential damages. Each party's total liability is limited to fees paid in the prior 12 months.

9. INDEMNIFICATION. Provider will indemnify Customer against third party claims alleging that the deliverables infringe intellectual property rights. Customer will indemnify Provider against claims arising from Customer data.

10. DATA PROTECTION. Each party will process personal data in accordance with applicable law and maintain reasonable administrative, technical, and physical safeguards.

11. GOVERNING LAW. This agreement is governed by the laws of the State of Delaware without regard to conflict of law rules.

12. DISPUTE RESOLUTION. The parties will first attempt to resolve disputes through good faith negotiation. Unresolved disputes will be submitted to binding arbitration in Wilmington, Delaware.

13. ASSIGNMENT. Neither party may assign this agreement without the other party's prior written consent, except to an affiliate or in connection with a merger or sale of substantially all assets.

14. FORCE MAJEURE. Neither party will be liable for delays caused by events beyond its reasonable control.

15. ENTIRE AGREEMENT. This agreement constitutes the entire understanding and supersedes all prior agreements.

16. SIGNATURES. The parties execute this agreement by their authorized representatives.

IN WITNESS WHEREOF, the parties have signed this agreement as of the date first written above.